

— THE STANDARD · SESSION 1 · WISCONSIN

The Law Is the Standard

Our Duties Under Wisconsin Chapter 452

The Standard · Session 1 · Wisconsin · Presentation + Reference handout

GENERAL

OFFICE

ETHICS

DATE

Tuesday, September 22, 2026

PRESENTED BY

Pedro Bando Rivera, Broker/Owner

OFFICE

Wisconsin Office

The Punchline

Say it out loud.

STORY TIME

SAY IT OUT LOUD

My broker doesn't just teach me to close. He teaches me the law that protects my clients.

Mi broker no solo me enseña a cerrar. Me enseña la ley que protege a mis clientes.

The Standard is the General · Office · Ethics series at reThought Real Estate. Session 1 starts where every office system starts: the statute — our duties under **Wisconsin Chapter 452**, and why every system we run exists because of them.

INSIDE THIS HANDOUT

ACT 1	The Broker's Duty Why I teach this · six duties · six deep dives	p. 3-10
ACT 2	Relationships & Duties Who you work for · duty lists · confidentiality · paper	p. 11-14
ACT 3	The Buyer Agreement Before you tour, you sign	p. 15
ACT 4	Real Scenarios Invisible Seller · Offer Nobody Answered · Naked Offer	p. 16, 18
ACT 5	Offer Protocols Receiving an offer · sending one like a professional	p. 17-18
ACT 6	Systems as Duty The loop · company email · Teams & voicemail — and the statute behind each	p. 19
RECAP	The Standard Eight commitments · role-play · AI practice partner	p. 20-21

Every system we run in this office starts with a statute. This handout maps each one.

Why I'm Required to Teach This



Pedro Bando Rivera

BROKER/OWNER · RETHOUGHT WI

▼ UNDER ONE LICENSE ▼

SA

Every offer you write

my license wrote

SA

Every deposit you take

my license holds

SA

Every ad you run

my license runs

SA

Every message you send

my license keeps

SA

Every client you serve

my license answers for

THE STATUTES BEHIND IT

§452.132(1)

the firm shall supervise the brokerage service activities of each licensee

§452.14(3)(L) & (4)

violations reach the firm's license

REEB 15.04

records & correspondence kept 2 years

This session isn't culture. It's Chapter 452 — the one job the state says I can't delegate.

What My License Answers For

Six statutory responsibilities. Every office system maps to one of them.



01 / 06

Records

Kept 2 years — from closing, or from agency termination if the deal never closes.

REEB 15.04



02 / 06

Trust Funds

To the firm promptly; banked within 48 hours.

REEB 18.031



03 / 06

Disclosure Statements

Customers — before you negotiate.
Clients — at the agency agreement.

§452.135



04 / 06

Your Advertising

Firm name clear & conspicuous.
Nothing misleading. AI edits disclosed.

§452.136



05 / 06

Your Communications

“Other documents or correspondence” are firm records too.

REEB 15.04



06 / 06

Supervision Itself

Supervise & review every file — before closing.

§452.132

Everything in today's session exists because one of these boxes is mine.

The File Outlives the Deal



“A firm shall retain for at least 2 years... exact and complete copies of all listing contracts, agency agreements, offers to purchase, ... and other documents or correspondence utilized, received or prepared in connection with any transaction. The retention period shall run from the date of closing of the transaction or, if the transaction has not been consummated, from the date the listing contract or the agency agreement is terminated.”

— Wis. Admin. Code REEB 15.04(1)

EN CRISTIANO

If a client ever signed a listing contract or agency agreement, the file stays **two years** — from closing, or from termination if the deal never closed.



✓ **Unaccepted offers** — kept

✓ **Expired listings** — kept (clock starts at termination)

✓ **Buyer agency agreements that never bought** — kept

✓ **Cancelled deals** — kept

The deal can die. The file cannot. *El deal puede morir. El expediente no.*

The 48-Hour Clock



“A licensee who receives real estate trust funds shall promptly submit the funds to the firm of the licensee.”

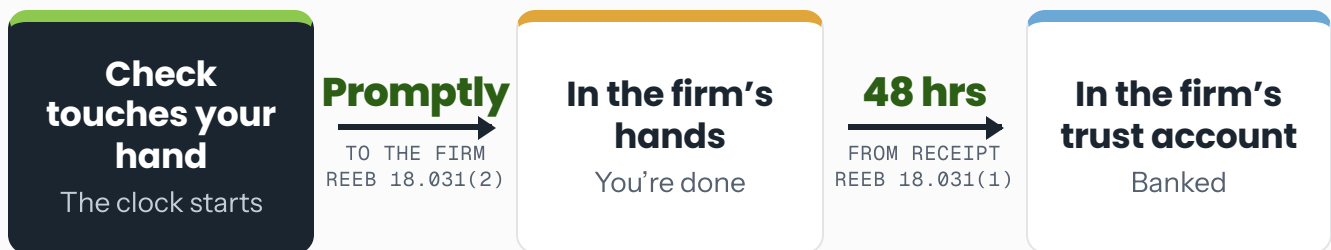
– Wis. Admin. Code REEB 18.031(2)

“A firm shall deposit all real estate trust funds... in a real estate trust account within 48 hours of receipt... If funds are received on a day prior to a holiday or other day when the depository institution is closed, the firm shall deposit the funds within the next 2 business days.”

– Wis. Admin. Code REEB 18.031(1)

EN CRISTIANO

You promptly hand it to the firm. The firm has **48 hours** from receipt to bank it — or the next 2 business days if a holiday closes the bank in between.



THE 48-HOUR WINDOW

Receipt

Check touches your hand — promptly to the firm (REEB 18.031(2))

48 HRS

In the firm's trust account



Holiday? Bank closed for a holiday? The firm deposits within the **next 2 business days**.

The clock starts when the check touches your hand — not when you get around to it. *El reloj empieza cuando el cheque toca tu mano.*

Before, Not After



*“No firm... may negotiate on behalf of a party who is not the firm’s client unless the firm... provides to the party a copy of the... written disclosure statement.” — the **Disclosure to Customers**. “...a firm shall provide to a client a copy of the... written disclosure statement not later than the time the firm enters into an agency agreement with the client.” — the **Disclosure to Clients**.*

– Wis. Stat. §452.135(1)(a) & (2)(a)

EN CRISTIANO

Customers get the disclosure **before you negotiate** for them. Clients get it no later than the moment they sign the agency agreement.

CLIENT SIDE

The state wrote the words into the form.

Residential Listing Contract
state-approved · **Disclosure to Clients**
printed inside

Buyer Agency Agreement
state-approved · disclosure + consent inside

Disclosure to Customers
standalone

Multiple-rep consent
a **checkbox inside the form**

Wisconsin drafts the language. The approved form carries it. One signature covers contract and disclosure.

CUSTOMER SIDE

Before you negotiate for them.

Customer calls
Tuesday



You’re about to write
their offer



**DISCLOSURE TO
CUSTOMERS in their hands
first**

No agency agreement means customer — and the law stops you at the pen: no negotiating for them until the disclosure is delivered.

Paper before the negotiation — never after the handshake. *El papel antes de la negociación, nunca después.*

Every Post Is an Ad



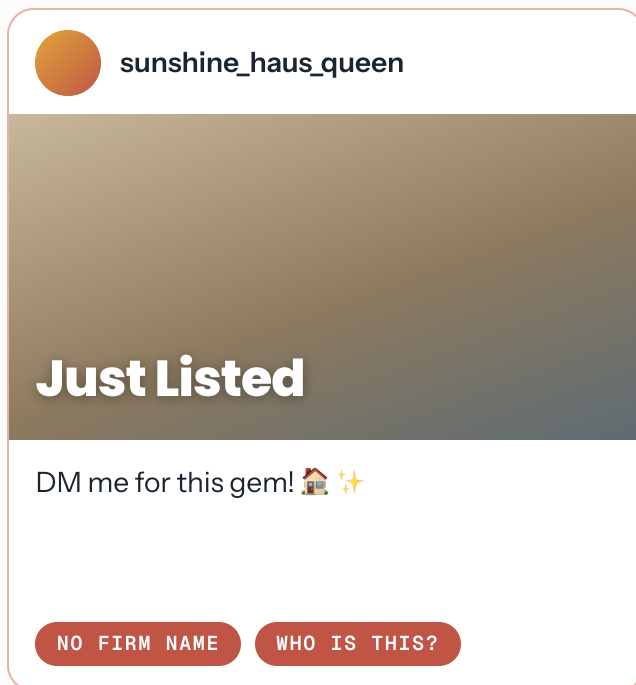
"A licensee may not advertise in a manner that is false, deceptive, or misleading... The firm's name as used in advertising shall be clear and conspicuous."

— Wis. Stat. §452.136(1) & (2)(b)

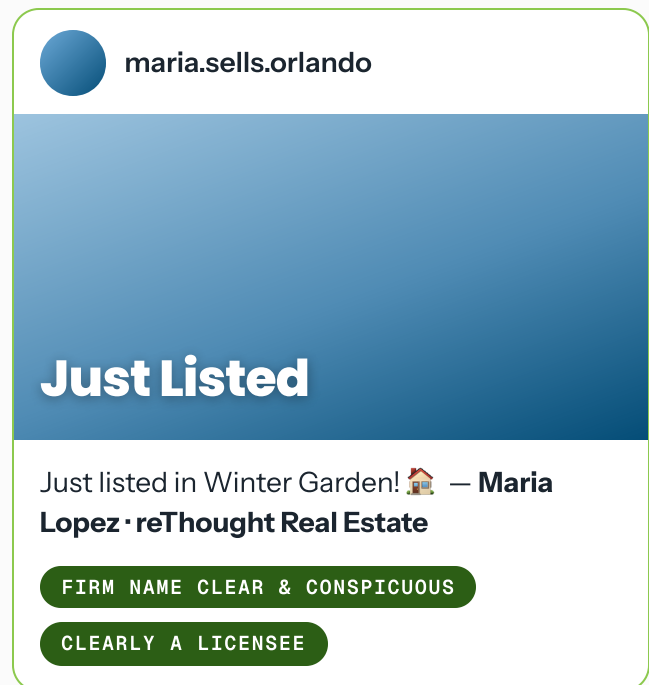
EN CRISTIANO

If a stranger scrolling by can't clearly see which firm backs you, the post itself breaks the rule.

x THE VIOLATION



✓ THE STANDARD



NEW · §452.136(1m) AI-altered listing photos that create a false or misleading impression? **Disclose it.**

If the firm's name isn't clear and conspicuous, the post is the violation. *Si el nombre de la firma no es claro y conspicuo, el post ya es la violación.*

Write It Like Evidence



“...and other documents or correspondence utilized, received or prepared in connection with any transaction.”

— Wis. Admin. Code REEB 15.04

EN CRISTIANO

Your transaction emails and messages aren’t private chit-chat — they’re **firm records** I have to keep, and evidence if a deal ever ends up in a dispute.

EXHIBIT A · 123 PALM AVE

OFFER THREAD

Maria Lopez → Seller (Elena R.)

10:02 AM

Offer received on 123 Palm Ave — presenting it to you now. Full package attached.
Your call on how to respond.

ResidentialOffer_Signed_Smith.pdf

PreApproval_Smith.pdf

Disclosures_Signed.pdf

Seller (Elena R.) → Maria Lopez

2:40 PM

Let’s counter at \$430,000, closing Oct 30. Please send it today.

WRITTEN DIRECTION — ON FILE

Maria Lopez → Buyer’s Agent

3:05 PM

Seller counters at \$430,000, closing Oct 30. Signed counteroffer attached — response by Thu 6 PM.

Counteroffer_430000_Signed.pdf

Write every message like a judge will read it. One day, one might. *Un día, capaz lo lea.*

Supervise. Review. Access.



“A firm shall supervise the brokerage service activities of each licensee associated with the firm... the supervising broker ‘shall review’... prior to the closing of a transaction.”

– Wis. Stat. §452.132(1) & (4)(a)

EN CRISTIANO

If I don’t actively supervise every one of you, and review every file before closing, the Division can discipline my license for it — **not yours, mine.**

01 SUPERVISE

Training before the field.

Tuesday sessions

Written office policies

02 REVIEW

Every file, reviewed before closing — the statute says so.

Broker file review

Every file lives in the loop

Submitted →
Reviewed ✓

03 ACCESS

You always have a supervising broker to consult.

Open door

Microsoft Teams

Company email



Three lanes. One firm license — and §452.14(4) says the firm answers for its people. If a lane goes dark, discipline lands here.

LICENSE

When I review your file, that’s not micromanagement — that’s the statute happening. *Eso no es microgerencia, es el estatuto pasando.*

Three Relationships. One Piece of Paper.

Wisconsin gives you three ways to work with a buyer or seller. If nothing is in writing — they're a customer.

When a client says “you work for me”... **do you?**

Wisconsin gives every person you serve seven duties — and reserves the loyalty tier for clients. Most agents can't name which one is in front of them.

Cliente, customer o representación múltiple. ¿Cuál tienes delante?

1

NO WRITTEN AGREEMENT? THIS IS THEM

Customer

Everyone you serve — owed all seven §452.133(1) duties. But you may NOT negotiate on their behalf.

§452.134(1)(b): a firm may not negotiate on behalf of a party unless that party is the firm's client.

2

WRITTEN AGENCY AGREEMENT

Client

The written agreement makes them a client — adds the loyalty tier + the duty to negotiate for them.

§452.01(1m): a written agreement between a firm and a client authorizing brokerage services.

3

WRITTEN CONSENT — CHECKBOX IN THE FORM

Multiple Representation

Both sides are the firm's clients — with designated agency two agents advocate; without it, the firm stays neutral.

§452.134(2)&(3): all clients' consent in writing; designated agency needs its own separate written consent.

In Wisconsin, the paper makes the client. No writing — no client. But never zero duties.

The Duty Lists: Both Tiers

Check each one you can explain to a client in plain language.

Duties to All Parties: 7 You Owe Everyone

§452.133(1) · CLIENT OR NOT · THE FLOOR, NOT THE CEILING

- ☐ 01 Brokerage services provided honestly and fairly
- ☐ 02 Brokerage services provided with reasonable skill and care
- ☐ 03 Timely written disclosure of material adverse facts the firm knows that the party does not know
- ☐ 04 Confidentiality of information given in confidence continues after closing & after representation ends
ITS OWN PAGE AHEAD
- ☐ 05 Accurate market-conditions information, on request
- ☐ 06 Safeguard trust funds and other property held
- ☐ 07 When negotiating on a party's behalf, present proposals in an objective and unbiased manner and disclose their advantages and disadvantages

Clients Get the Loyalty Tier

§452.133(2) · FIVE ADDITIONS UNLOCK WITH A WRITTEN AGENCY AGREEMENT

- ☐ 01 **Everything on the left** all seven
- ☐ 02 **Loyalty** the client's interest first — before the firm's, before any non-client's
- ☐ 03 **Info & advice** on request
- ☐ 04 **Disclose all material info** except other parties' confidential info
- ☐ 05 **Follow the agency agreement &** the client's lawful orders
- ☐ 06 **Negotiate on the client's behalf**

☐ BLUE = THE LOYALTY TIER, UNLOCKED BY A WRITTEN AGENCY AGREEMENT

Only ONE duty can ever be waived — negotiation, in writing. The rest “may not be waived.” §452.133(6)

Customer does not mean unprotected. Client = advocate. Customer = fairness. Know which hat you're wearing. *Cliente o no — le debes los siete.*

Confidentiality: What You Never Reveal

Most violations sound like friendly small talk. Each one is a statutory breach.



One buyer's offer terms to another buyer

"The other offer is 405 — beat it"

REEB 24.12 — THE MULTIPLE-OFFER TRAP



Your client's bottom line

"Offer 380, they'll take it"



Anyone's motivation

"It's a divorce — they're desperate"



Anything given in confidence

"Between us..." isn't a loophole



It never expires

The duty survives closing — forever

YOU MAY SAY

- ✓ Other offers exist
- ✓ One was accepted
- ✓ Contingencies exist

YOU NEVER SHARE

The terms.

Say instead: **"Bring your best offer."**

Say it in your own words YOUR ANSWER TO "WHAT WILL THEY TAKE?"

When the Law Demands Paper

Two legal requirements. Zero drafting — the language lives in our forms.

CUSTOMER

Disclosure to Customers BEFORE you negotiate for them.

§452.135(1)

CLIENT

A written agency agreement — that’s what makes a client — with Disclosure to Clients at signing.

§452.01(1m) · §240.10 · §452.135(2)

You never draft this language — the state wrote it into the approved forms (REEB 16.04(1) makes them mandatory):



Residential Listing Contract (disclosure + consent inside)



Buyer Agency Agreement (disclosure + consent inside)



Disclosure to Customers (standalone)

When would the consent checkbox matter?

Your buyer-client falls for your firm’s own listing. Both clients consent in writing — with designated agency, two agents each advocate for their own client; without it, the firm goes strictly neutral. It’s a three-way checkbox printed right in the form.

✗ A phone call is not consent.

✗ A text that says “ok” is not consent.

✓ **Signed or initialed. On file.**

Buyer Agency Agreement: Before You Tour, You Sign

Wisconsin Law

- No statute forces a buyer to sign
- But you may not negotiate for a non-client — §452.134(1)(b)
- And an agency agreement is, by definition, written — §452.01(1m), §240.10

NAR + MLS Policy — Binding on Us

- ✓ Written agreement before touring — including live virtual tours
- ✓ Compensation specific & conspicuous — objectively ascertainable, never open-ended
- ✓ You may not collect more than the buyer agreed to — from any source

In Wisconsin, the Agreement IS the Relationship

01

No written agreement?
They're a customer — seven duties, but you can't negotiate on their behalf.

02

The written buyer agency agreement is what makes them your client — loyalty tier unlocked.

03

NAR adds the before-touring deadline; Wisconsin adds the teeth: no writing, no advocacy.

No signed agreement = No tour

It's also how you get paid

This isn't friction. It's the moment your buyer learns what you do and what you earn.
Clarity is the brand.

Two Offers. Two Broken Duties

SCENARIO 1 · ANONYMIZED The Invisible Seller

STEP 1

Offer arrives: \$385K

List price \$410K.
“Carmen” thinks
it’s low.

STEP 2

She counters on her own

“They won’t take
less than 400 —
come up and we
have a deal.”

STEP 3

Seller never knew

No offer
presented. No
direction given. No
record anywhere.

RESULT

Duties broken. License exposed.

And the seller’s
bottom line?
Leaked.

✗ Present proposals
objectively §452.133(1)(g)

✗ Confidentiality — bottom line
leaked §452.133(1)(d)

✗ Client’s orders & the agency
agreement §452.133(2)(c)

✗ Improper dealing §452.14(3)(k)

THE RULE Every offer gets presented. The seller directs the response. You advise — they decide. *Cada oferta se presenta — el seller decide.*

SCENARIO 2 · ANONYMIZED The Offer Nobody Answered

“Marcos” sends a clean full-price offer. Day 1... day 2... day 3 — his buyers walk.

THE LAW BEHIND IT

§452.133(1)(g) — present proposals “in an
objective and unbiased manner”

NAR SOP 1-6 — “as quickly as possible”

NAR SOP 1-7 — written affirmation of
presentation on written request

WHAT SHOULD HAVE HAPPENED

- 1 **Acknowledge — same day.** “Received,
thank you — presenting to my seller today.” In
writing.
- 2 **Present — same day.** Seller sees every offer.
Log when and how it was presented.
- 3 **Respond — in writing.** Accept, counter, or
decline — whatever the seller directs. Paper
trail always.

THE RULE Silence is not a negotiation strategy. Every offer deserves an answer — and a
cooperating broker can demand written proof it was presented.

Every offer is presented, answered, and written down — **that is the duty.**

An Offer Lands on Your Listing. Now What?

1

Acknowledge — same day, in writing

“Received — presenting to my seller today.”

2

Upload to the loop — immediately

The moment it’s in, it’s a firm record. **REEB 15.04**

3

Present to your seller — same day

Phone + email. The email is your proof of presentation.

4

Get the seller’s direction — in writing

Accept / counter / decline. Their words, not your assumption.

5

Respond in writing — log it

Multiple offers? You may say others exist — never their terms. **REEB 24.12**

MY LOOPS > 123 PALM AVE — LISTING > OFFER 1 — SMITH



Residential Offer to Purchase — Smith \$385,000

SUBMITTED



Pre-Approval Letter — Smith

SUBMITTED



Seller Counter #1 — \$402,500 (seller-directed)

SENT

ACTIVITY

- Offer received & acknowledged — 10:02 AM
- Presented to seller (call + email) — 11:15 AM
- Seller directed counter at \$402,500 — 2:40 PM
- Counter delivered to buyer’s agent — 3:05 PM



GREETING ·
0:12

YOUR VOICEMAIL IS A DUTY CHECKPOINT — RECORD THIS TODAY, 30 SECONDS

“You’ve reached [your name] with reThought Real Estate. I can’t take your call right now — leave your name and number and I’ll call you back the same business day.”

“Ha llamado a [su nombre] de reThought Real Estate. Deje su nombre y número y le devuelvo la llamada el mismo día laboral.”

A file that looks like this can never be accused of sitting on an offer. **The record answers for you.**

The Naked Offer vs. a Professional One

“Hi, my clients want to offer \$415K on Palm Ave — let me know.” That was the whole offer.

WHAT ARRIVED

- ✗ A price... in an email
- ✗ No signed contract — no initials, blanks empty
- ✗ No pre-approval or proof of funds
- ✗ No disclosures, no deadlines, no trust details

WHAT A PROFESSIONAL SENDS

- ✓ On the state-approved offer form — every blank filled (my pre-closing review literally checks this — §452.132(4))
- ✓ Pre-approval / POF — dated, matching the buyer
- ✓ Signed disclosures + trust funds: who holds it, when it lands
- ✓ Response deadline + one clean summary email

THE RULE “Reasonable skill and care” is a statute, not a compliment. In multiple offers, complete files get ranked first — every time.

Sending an offer like a professional

NEW MESSAGE · 4 ATTACHMENTS

FROM: maria.lopez@rethought-realestate.com
 TO: Jordan Wells <jordan@theirbrokerage.com>
 SUBJECT: **OFFER — 123 Palm Ave — Smith — \$415,000 — Response by Thu 6 PM**

Hi Jordan,
 Attached is a complete offer from my buyers, the Smith family:
 Price: \$415,000 — conventional, 20% down (pre-approval attached)
 Closing: October 30
 Earnest money: \$10,000 to the listing firm’s trust account within 48 hours of receipt
 Response by: Thursday, 6:00 PM

Calling you now to confirm receipt — my cell is below for anything you need.

Maria Lopez · reThought Real Estate · (407) 555-0142

ResidentialOffer_Signed_Smith.pdf

PreApproval_Smith_0918.pdf

Disclosures_Signed.pdf

TrustFunds_Deposit_Details.pdf

Send — then call to confirm receipt

The call makes your offer impossible to miss.

Complete package = your diligence duty

Reasonable skill and care is a statute — an incomplete offer is a diligence failure.

The cheapest advantage

A clean, complete offer costs 15 minutes of care.

The Systems Are How **We Obey the Law**



The Loop

TRANSACTION MANAGEMENT · EVERY FILE, EVERY TIME

2-Year Record Duty — met on submit

FULFILLS REEB 15.04

Every contract, offer & disclosure preserved the moment it's uploaded.

Pre-closing broker review = the statute's own checklist

FULFILLS \$452.132(4)

"Submitted → Reviewed" is supervision happening in real time, before closing.

The 48-hour trust clock — proven

FULFILLS REEB 18.031

Submitted promptly; banked within 48 hours. Timestamps are the evidence.



Company Email

BUSINESS RUNS ON THE FIRM'S ADDRESS

It's a firm record

FULFILLS REEB 15.04

Transaction emails are part of the 2-year file — captured automatically.

It carries the firm's name

FULFILLS \$452.136(2)

Often your first impression — licensed professional, real firm, real broker.

Also: it protects client data & covers your client

GOOD PRACTICE

Business-grade security — and the office can step in if you're on a plane and the deal is on fire.

COULD BE ANYONE

sunshineagent407@... — no firm, no broker, no way to verify

BACKED BY A BROKERAGE

maria.lopez@rethought-realestate.com — verifiable in one glance



Teams + Voicemail

REACHABLE: BROKER + MARKET

Microsoft Teams — the "access" lane

FULFILLS \$452.132

You always have a supervising broker to consult — open door, Teams, company email.

Voicemail & callbacks — a duty checkpoint

FULFILLS \$452.133(1)(g)

Proposals can't be presented "in an objective and unbiased manner" if the market can't reach you. Branded greeting + same-business-day returns.

One system. Three statutes. Zero stress. When the Division asks a question, the loop answers in 30 seconds.

Eight Commitments. Zero Preferences.

Every one traces to a statute or rule we read today. Check the box when it's a habit

— Session 2 opens with a self-check.

☐

01

Relationship named

Customer, client, or multiple rep — the paper matches

§452.133-.135

☐

02

Disclosure before I negotiate

Customer or client — right form, right moment

§452.135

☐

03

Offers presented same day

Acknowledged, presented, logged

§452.133(1)(g)

☐

04

Client directs, I execute

Never negotiate without written direction

§452.133(2)

☐

05

Complete offer packages

On state-approved forms — contract + financing + disclosures + deadline

§452.132(4)

☐

06

Every file in the loop

Uploaded when it happens — not at closing

REEB 15.04

☐

07

Business on company email

Records, identity, security, coverage

REEB 15.04

☐

08

Voicemail + callbacks

Branded greeting · same-business-day returns

§452.133(1)(g)

NAME _____

INITIALS _____

DATE _____

Ch. 452 + REEB rules + the REALTOR® Code — translated into eight habits.

Duty Role-Play + Your AI Practice Partner

EN

ES

R1

“So... do you work for me or not?”

Explain customer vs. client in plain language — 60 seconds, no statute numbers.

“¿Entonces... trabajas para mí o no?”

Explica customer vs. cliente en lenguaje simple — 60 segundos, sin números de estatuto.

R2

“Just tell me — what will they really take?”

Answer without breaking confidentiality — remember REEB 24.12: existence yes, terms never.

“Dale, dime — ¿cuánto es lo que de verdad aceptan?”

Responde sin romper la confidencialidad — recuerda REEB 24.12: existencia sí, términos nunca.

R3

“Don’t bring me anything under \$400K.”

What must exist before you can filter offers? (It starts with “in writing...” — and it lives in the agency agreement.)

“No me traigas nada por debajo de \$400K.”

¿Qué tiene que existir antes de poder filtrar ofertas? (Empieza con “por escrito...” — y vive en el agency agreement.)

AI shortcut — 10 minutes a night until Session 2

COPY · PASTE INTO YOUR AI PROJECT

CLAUDE / CHATGPT / GEMINI

You are a tough-but-fair Wisconsin real estate broker running a compliance drill. Quiz me ONE scenario at a time on my duties under Wis. Stat. §452.133 (duties to all parties vs. clients), §452.134 (multiple representation and designated agency), §452.135 (disclosure statements), REEB 24.12 (offer confidentiality), and NAR’s written buyer agreement rule. Play buyers, sellers, and agents who pressure me to break a duty. After each answer tell me: (1) was I legally correct, (2) which duty was at stake, (3) a cleaner way to say it to a real client. Keep score out of 10. Start easy, get harder.

The pressure is the practice. The AI plays the pushy buyer so the real one never catches you off guard.

REPUTATION INSURANCE

The law is the standard. Every system starts there.

*"It takes 20 years to build a reputation
and five minutes to ruin it. If you think
about that, you'll do things differently."*

WARREN BUFFETT

Toma veinte años construir una reputación y cinco minutos arruinarla. Si piensas en eso, harás las cosas diferente.

Everything today was reputation insurance — for you, for this firm,
and for every family that trusts us with the biggest decision of
their lives.

See you next Tuesday.

COME READY FOR THE SESSION 2 SELF-CHECK

MISSION

To redefine traditional real estate expectations delivering a **personalized, tech-driven,**
and **client-centric** approach to buying and selling real estate.

HUMAN FIRST · TECH DRIVEN · COMMUNITY FOCUSED